



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 10050
(SECOND REVISION)

FEB 26 1993

1. Ceodeux, S.A., Lintgen, G.D. de Luxembourg, Germany (U.S. Agent -Russell C. Snyder Jr., Washington, Pennsylvania), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the valve used in the packaging described in paragraph 7 below for use in the transportation in commerce of the hazardous materials described in paragraph 3 below subject to the limitations and special requirements specified herein. This exemption authorizes the use of a pneumatically or manually operated valve of a packless design with a stainless steel non-perforated diaphragm seal, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from Ceodeux SA dated April 30, received September 24, 1990 and supplemental information dated January 28, May 8, and September 10, 1991, submitted in accordance with 49 CFR 107.105 and 107.103 the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Poison A materials described in 49 CFR Subpart H, §§ 173.326 through 173.337 and other hazardous materials specifically identified to and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.327(a).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT specification cylinder approved for use in 49 CFR Subpart H for Poison A materials. Each cylinder charged with Poison A materials that are also Corrosive must be equipped with a valve designed for a maximum service pressure of 3000 psig and conforming with Ceodeux's drawing No: 1-3665 dated July 19, 1990, submitted to and on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Closure of the valves may be manual (by handwheel) or by pneumatic actuation. Closing system must provide for control of closing force so as to prevent damage of the sealing part. The valve must be of a packless type design with a stainless steel non-perforated diaphragm seal and of such design that:

FEB 26 1993

- a. The valve assembly has been proven capable of withstanding at least 5,000 closing and opening (full stroke) cycles at cylinder service pressure without damage.
- b. The valve housing is capable of withstanding at least 5.0 times cylinder service pressure without bursting.
- c. The valve remains leak tight up to 167° F (75° C).
- d. The internal moving parts and diaphragms of each test valve is capable of withstanding at least 2.0 times the valve's service pressure.
- e. Any cylinder equipped with a valve authorized under this exemption may not be refilled unless the valve is removed from the cylinder and successfully retested at test pressure, once every five years or at the cylinder retest frequency, whichever is earlier.
- f. Cylinder equipped with a valve manufactured in conformance with Ceodeux's drawing No. 3650 Rev.0 as previously authorized under DOT-E 10050 are not permitted after October 1, 1991.

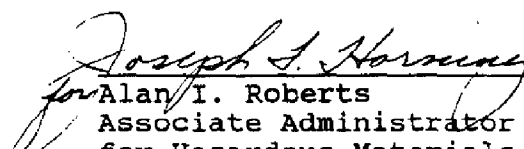
8. SPECIAL PROVISIONS.

- a. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.
- b. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modification or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.
- c. Each cylinder may be filled and shipped with any material which is authorized for the DOT specification marked on the cylinder.
- d. Drivers must have been instructed as to necessary safeguards and proper procedures to follow in the event of unusual delay, fire or accident.
- e. Each package must be prepared and shipped in accordance with 49 CFR Subpart H, as applicable for the lading.
- f. A copy of the design test results must be supplied to the OHMEA prior to initial shipment.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reporting to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 30, 1993.

Issued at Washington, D.C.


for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 26 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA, USCG.